

Managing Director, D.V.V. Nigam Ltd. & 2 Others v. Sri Kartar Singh & Another

High Court of Judicature at Allahabad · Division Bench · 4 November 2025 · Writ - C No. 26107 of 2014 · **Writ petition dismissed; CGRF order dated 01.01.2014 affirmed**

HEADNOTE

A licensee that produces no bills or ledgers for a connection before February 2009 cannot recover earlier arrears. Section 56(2) of the Electricity Act, 2003 bars recovery after two years from the date the sum first became due unless the sum has been shown continuously as recoverable as arrears, and the licensee cannot take the benefit of its own default in not producing those records. The Consumer Grievance Redressal Forum, Agra, correctly set aside a demand of Rs. 1,76,431.60 and limited recovery to 26 February 2007–31 March 2010 excluding surcharge. An objection that the consumer had not first invoked Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 is a technical ground; after the 2013 dispute and nearly twelve years of writ pendency, the Court will not interfere with a Forum order that is unassailable on merits. The proceedings were not a Section 126 assessment or a complaint under Sections 135–140 and 150, which would not be maintainable before Consumer Forums.

FACTUAL SUMMARY

Kartar Singh obtained an electricity connection on 2 July 1990. He alleged that no bill was ever issued despite repeated visits to the Executive Engineer. In 2010, distribution in Agra was handed to Torrent Power Limited and his service number changed. An April 2013 bill of Rs. 1,309.81 showed arrears of Rs. 1,75,121.79. He complained to the Consumer Grievance Redressal Forum, Agra.

Dakshinanchal Vidyut Vitran Nigam Ltd. and the Executive Engineer pleaded that bills had been issued, that Rs. 1,26,175 stood as past arrears on transfer as on 1 April 2010, and that the complaint was not maintainable under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Torrent said it had billed regularly after taking over on 1 April 2010, and that as on 17 August 2013 Rs. 1,81,809 was due to DVVNL and Rs. 19,649 to it. By order dated 1 January 2014 the Forum set aside a demand of Rs. 1,76,431.60 and directed a fresh bill for 26 February 2007 to 31 March 2010 excluding surcharge. The Managing Director of DVVNL, the Executive Engineer and Torrent filed this writ petition.

HOLDING-UNITS

HOLDING-UNIT · EA2003::56(2)

No recovery of old arrears where the licensee produces no bills or ledgers showing them continuously as recoverable

QUESTION

May a licensee recover arrears from 1990 where it produces bills and ledgers only from February 2009 and never disconnected for non-payment?

HOLDING

No. Section 56(2) provides that no sum due from a consumer shall be recoverable after two years from the date it first became due unless it has been shown continuously as recoverable as arrears of charges for electricity supplied. The Forum found that the licensees had produced records only for 25.02.2009–19.03.2009 and 20.12.2009–20.03.2010, with no bills or ledgers for the period before 2009 and no disconnection despite alleged non-payment since 1990. In the writ they still gave no justification for that default. They cannot be given the benefit of their own defaults. The Forum's order limiting recovery to 26.02.2007–31.03.2010 excluding surcharge, and setting aside the demand of Rs. 1,76,431.60, cannot be faulted on the evidence. ¶ 5-8

HOLDING-UNIT · UP-2005::6.5(b)

Non-exhaustion of Clause 6.5(b) is a technical ground; not a basis to set aside a CGRF billing order after long delay

QUESTION

Does a consumer's failure to first invoke Clause 6.5(b) make a CGRF billing complaint non-maintainable so as to warrant quashing the Forum's order in a licensee's writ?

HOLDING

Not so as to warrant interference after long delay. The only contention in the writ was that the complaint was not maintainable and was premature for want of a Clause 6.5(b) objection. The consumer's case before the Forum was that he had repeatedly approached the Executive Engineer's office. The dispute is of 2013 and nearly twelve years have passed. The licensees failed to show how the Forum's order is illegal on merits. It is not in the interest of justice to interfere solely on technical grounds after a substantial lapse of time. ¶ 7, 9-10

QUALIFIER

The Court did not construe the text of Clause 6.5(b) or hold whether it is a mandatory precondition to a CGRF complaint.

HOLDING-UNIT · EA2003::126

A CGRF billing-arrears complaint is not a s.126 assessment or s.135–140/150 matter

QUESTION

Was the CGRF complaint non-maintainable as a Section 126 assessment or a complaint under Sections 135–140 and 150?

HOLDING

No. The Court clarified that these proceedings do not arise out of any action under Section 126 relating to assessment, or under Sections 135 to 140 and Section 150; such complaints are not maintainable before Consumer Forums. ¶ 10

FLAG Source PDF also contains 09.05.2014 (notice), 20.08.2014 (stay of the CGRF order), and 10.10.2014 (admit; stay continued; petitioners cited Anis Ahmad against a 'District Consumer Forum' proceeding). The 04.11.2025 judgment treats the body as the Consumer Grievance Redressal Forum, Agra, and decides a billing-arrears dispute, not a s.126/135 complaint.

PRINCIPLE TAGS

own-wrong-maxim

Applied against the licensees: having produced no bills or ledgers before February 2009, they cannot recover earlier arrears or take the benefit of that default under Section 56(2). Same cluster as SCJ-001. ¶ 7-8

alternative-remedy-not-a-bar-after-long-pendency

The licensees' Clause 6.5(b) maintainability objection, even if technical, will not undo a CGRF billing order after nearly twelve years from the 2013 dispute when the order is unassailable on merits. ¶ 9-10

consumer-forum-lacks-jurisdiction-over-s126-s135-140-matters

Applied as the converse: a billing-arrears complaint before CGRF is maintainable because it is not a s.126 assessment or a s.135–140/150 complaint. Anis Ahmad was cited by the petitioners at admission against a 'District Consumer Forum'; the 2025 Court named the principle without the case name. Lead authorities: *U.P. Power Corporation Ltd. vs. Anis Ahmad*. ¶ 10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.5(B) IS A MANDATORY PRECONDITION TO A CGRF COMPLAINT

The Court refused interference as a technical ground after long delay and did not construe the clause. ¶ 7, 9-10

NOT DECIDED — QUANTUM OF THE FRESH BILL FOR 26.02.2007–31.03.2010 EXCLUDING SURCHARGE

Left as the Forum directed it to be prepared. ¶ 6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. Power Corporation Ltd. vs. Anis Ahmad</i> LAWS(SC)-2013-7-145 Supreme Court	Proceedings before a District Consumer Forum are not maintainable in view of this decision (as invoked by the petitioners).	Cited by the petitioners in the 10.10.2014 admission order against a District Consumer Forum proceeding. The 04.11.2025 Court did not	Petitioner	Distinguished

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
		name the case; it held that this writ does not arise from a s.126 assessment or a s.135– 140/150 complaint, such complaints not being maintainable before Consumer Forums. ¶ 10		